

BULLETIN

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The invalidation of the old federal marijuana tax laws by the Supreme Court's decision in the Leary case pointed up the need (at least in the minds of government people) for a more systematic approach to federal drug legislation, and a number of bills came up in Congress, some of which were summarized in earlier Bulletins. On October 27, 1970, a new federal drug bill was finally signed into law. It is called the "Comprehensive Drug Abuse Prevention and Control Act of 1970," and perhaps the best thing that can be said about it is that it is probably unconstitutional.

The Act reflects the users-are-sick-but-pushers-are-lower-than-a-worm-and-ought-to-be-locked-up-forever approach that has characterized so much public rhetoric about drugs in recent months. The vilification heaped on pushers has always seemed to me rather overdone. There's nothing specially noble about the profession of selling drugs, but it is very American to make money by providing merchandise for which a demand exists or can be created, and I never heard that the average businessman was terribly concerned over whether his product was good for people or not. Just exactly why a drug peddler need be more immoral than a seller of whiskey, or used cars, or hair lotion, or insurance, is not clear to me. My impression of salesmen - whether they sell drugs or something else - is that some are honest, some are not; most are mainly out for a buck, and a few are sincerely trying to provide a good product. But to get back to the law:

Controlled drugs are grouped into five "schedules," which are open to changes by the Attorney General in consultation with the Secretary of Health, Education and Welfare. The drugs we're interested in are in Schedule I, of which the main defining principle is that the drugs listed in it have "no currently accepted medical use." It is subdivided into narcotics and "hallucinogens," the latter group consisting of fifteen psychedelics plus marijuana and the tetrahydrocannabinols. The penalties that follow apply to this class.

"Simple possession" is a misdemeanor for which you can get up to a year in jail or up to \$5000 fine, or both, with the possibility of dismissal without a conviction record on a first offense. If you "manufacture, distribute, dispense, or possess with intent to sell" any of the listed non-narcotics in Schedule I, you can get up to five years, or \$15,000 fine, or both, or twice this much if you are over 18 and sell to a minor. For a second felony offense the penalty is up to 10 years, or \$30,000 fine, or both, with the penalties being tripled if one is over 18 and sells to a minor. That this description applies to every college

The PIC BULLETIN is issued every two months by Lisa Bieberman, 144 St. Botolph St., Apt. 2B, Boston, MA 02115. Send stamped, addressed envelopes for future issues. No subscriptions sold in the United States.	<i>The 6 Rules of Phanerothyme: Do not take it more than once in 3 months. Take it at least once a year. Take it reverently. Plan setting and group carefully. Ask God's guidance before, during and after. If phanerothyme gives you a clear leading, carry it out - but be sure it's clear.</i>
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student who shares his drugs with a roommate bothered the legislators only to the extent that they made an exception for the transfer of a "small amount of marijuana for no remuneration." This is to be treated like a case of simple possession. (If it's LSD he's giving away he's clearly lower-than-a-worm.)

In addition to the usual users and dealers we have two new concepts: the "dangerous special drug offender" and the "continuing criminal enterprise." If convicted of the latter one can get ten years to life without parole, and it occurs when someone commits a felony which "is part of a continuing series of violations: (a) in concert with five or more other persons with respect to whom such person occupies a position of organizer, a supervisory position, or any other position of management, and (b) from which such person obtains substantial income or resources." In case anyone lives long enough to engage in a "continuing criminal enterprise" twice, the law adds that a second such conviction carries 20 years to life.

Even weirder is the "Dangerous Special Drug Offender" who can get up to 25 years. This is apparently not a crime but a type of person. The explanation of who is such a person and how he is dealt with takes three pages of small print. He has to be over 21 and commit a felony, but the jury tries him only on the felony, and is not aware that he is also charged with being a dangerous special. That issue is decided later by a judge, in a hearing to determine whether the defendant needs to be locked up longer than the usual penalties provide for, in order to protect the public. If so, he's dangerous. To determine whether he is also special, the judge must decide whether he fits into any of the following three categories:

- (1) the defendant has previously been convicted in courts of the United States or a State...for two or more offenses involving dealing in controlled substances, committed on occasions different from one another...and punishable in such courts by death or imprisonment in excess of one year, for one or more of such convictions the defendant has been imprisoned prior to the commission of such felonious violation, and less than five years have elapsed...
- or (2) the defendant committed such felonious violation as part of a pattern of dealing in controlled substances which was criminal under applicable laws of any jurisdiction, which constituted a substantial source of his income, and in which he manifested special skill or expertise /and how fast can you roll a joint?/;
- or (3) such felonious violation was, or the defendant committed such felonious violation in furtherance of, a conspiracy with three or more other persons to engage in a pattern of dealing in controlled substances...and the defendant did, or agreed that he would, initiate, organize, plan, finance, direct, manage, or supervise all or part of such conspiracy or dealing, or give or receive a bribe or use force in connection with such dealing.

In deciding these questions the judge can use any kind of information, presumably without regard to rules of evidence, and in some cases may conceal from the defendant and his counsel what information he is relying upon.

What I can't figure out is why we have both "continuing criminal enterprise" and "dangerous special drug offender." An earlier bill had only one such category combining some of the characteristics of both, and while it was a badly written bill, it seemed clear what it was aimed

at: the criminal gang leader who makes big money on organized dope peddling. But why two special groups? As a guess I suppose the first is for professional dealers and the second is for political cases.

There's another brand new offense in this statute: using a medium of communication to facilitate a felony. Every time you use a medium of communication ("all public and private instrumentalities used or useful in the transmission of writing, signs, signals, pictures, or sounds of all kinds and includes mail, telephone, wire, radio, and all other means of communication" /vocal cords?/) it's a separate offense for which you can get up to four years, up to \$30,000 fine or both. Natch if you do it again you get up to 8 years, etc.

Other sections include a provision for police to break into a dwelling without knocking if a magistrate believes evidence would be quickly destroyed if they knocked; a witness immunity provision designed to get around the Fifth Amendment; and authorization for informers to be paid from the budget of the Bureau of Narcotics and Dangerous Drugs. (We always knew they hired informers but this is the first time I've seen the practice given the dignity of law.)

The new law goes into effect May 1, 1971. It has lots more details than I am able to summarize in the Bulletin - the text of it is 61 pages - so you may wish to write your Congressman and ask for a copy.

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Is Phanerothyme Unnatural?

C.S. Lewis, in The Screwtape Letters (a collection of epistles from one devil to another), suggests that Hell has its own propaganda department, spreading, at different times in history, whatever lies best suit its purposes. Surely Screwtape must have a veritable catechism on the subject of psychedelics, and on page 1 it says: "Drugs can be of no spiritual value because they are artificial." How else can you explain the almost complete universality of this idea, when it does not require experience or expertise, but only a few minutes' clear thought, to see how wrong it is.

For drugs are not artificial. Drugs are natural. They are as natural a method of altering consciousness as any other - maybe more so. Psychedelics have existed in nature for thousands of years, perhaps even longer than man. The peyote Indians say peyote was in the Garden when God created Adam and Eve, and for all we know they're right. Other natural psychedelics are morning glory seeds and psilocybe mushrooms. Early people found these plants in their environment and ate them. What could be more natural? What is artificial is the modern idea that drugs ought not to be eaten.

Some people say that it is unnatural to eat phanerothyme because it does not, so far as we know, contribute to nourishing the body. But this is to beg the question. Psychedelic drugs are not supposed to be nutrients - they are supposed to be psychedelic drugs. They don't work unless you get them inside you. People who make this objection are tacitly assuming that they are in on the Divine Plan, or the Will of Nature, or are in possession of some revelation to the effect that only nutrients, and not drugs, are intended for man's use. But when was this revelation ever revealed, and to whom? The peyote Indians, who have lived closer to nature than we are ever likely to, have no such doctrine.

They say, "God gave us maize as food for the body and peyote as food for the soul."

"But you take LSD," someone says, "and that's not natural. LSD is a synthetic." I will agree that a synthetic chemical is not as natural as a plant, though it is more natural than, for instance, this piece of paper or the process by which these words were printed. LSD is a chemical compound. That means that any batch of LSD consists of LSD molecules, all exactly alike. The LSD molecule is made of carbon, hydrogen, oxygen and nitrogen atoms combined in a unique structural arrangement. This structure was not invented - it was discovered. You cannot invent chemical compounds because there are only certain fixed ways in which atoms will combine. Chemists can predict that certain molecules can be synthesized, but only because they know that natural laws permit atoms to combine in those particular ways. Thus every chemical molecule is part of the blueprint of Creation. Although LSD is in this sense completely natural, it is in another sense less natural than a plant because human inventions (lab equipment) are used to produce it. We do not know whether LSD occurs in the plant world, though we do know that chemicals very similar to it are found in morning glory seeds, baby wood rose seeds, and the ergot fungus.

It is odd that those who object to LSD because it has been synthesized never raise the object of artificiality against other methods of altering consciousness, such as ritual chanting, systematic meditation, yoga, encounter groups, music, etc., though such methods are indeed artificial human inventions.

And when did we become such purists about nature? Do we not, even the most radical ecologists and advocates of simplicity among us, use artificial things in every aspect of our lives? Are not our clothing, our books, our homes, our means of transportation, most of our food, made or processed by machines? Does anyone really want to do away with all technology?

The fact that phanerothyme is natural - or no less natural than many other things which we all accept - does not prove that it should be eaten. It shows only that the decision about whether to eat it must be made on other grounds than those of naturalness or artificiality. Having personally decided, on other grounds, to use phanerothyme, I prefer LSD, because it is cheaper, less toxic, less nauseating, works more reliably and keeps better, than the plants.

When those who object to "artificiality" give up their cars, motorcycles, bicycles and shoes in favor of walking barefoot, when they give up man-made clothing in favor of covering themselves with the local shrubbery or not at all, when they raise all their own food without benefit of manufactured implements of cultivation, when they abandon radio, TV, telephone and all forms of printing and write, if at all (even the alphabet is artificial) with charcoal on tree-bark, then I will give up synthetic phanerothyme in favor of chewing raw peyote or morning glory seeds. Till then I hope to give my stomach a break and stick mainly to LSD.

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I've discovered that some people think my "no subscriptions" policy is meant to restrict circulation to a select group of acceptable readers. Not at all! I use the stamped, addressed envelope system to save time. Anyone may get the Bulletin and a number of "drug abuse"-oriented agencies are regular recipients. Give someone a year's Bulletins for Christmas - send me six stamped envelopes addressed to him. Other available literature is:

SESSION GAMES PEOPLE PLAY - A Manual for the Use of LSD. \$1.
PHANEROTHYME - A Western Approach to the Religious Use of Psychochemicals. 75¢
 "What God Is Doing with Drugs" (talk given at Wilmington College, Ohio). 25¢
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